

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
July 23, 2026
8:30 a.m./1:30 p.m.

15. CHRISTY NEUWORTH V. CORY NEUWORTH

25FL1179

Petitioner filed a Request for Order (RFO) on April 30, 2026, requesting modification of the child custody orders and parenting plan orders, as well as enforcement of financial arrears, and modification of the split of child related expenses. Petitioner concurrently filed an Income and Expense Declaration. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on June 11, 2026, and a review hearing on July 23, 2026. Respondent was personally served in accordance with Family Code section 215 on May 2, 2026.

Both parties attended CCRC on June 11th and were able to reach many agreements. A report memorializing the parties' agreements along with additional recommendations was prepared on June 16th and mailed to the parties on June 17, 2026.

Respondent has not filed a Responsive Declaration or an Income and Expense Declaration. The court deems his failure to do so as an admission that Petitioner's moving papers have merit. See El Dorado County, Local Rule 7.10.02(C).

Petitioner filed a Supplemental Declaration on July 10, 2026. It was served on Respondent the same day.

The court has read and considered the filings as outlined above. The court finds the agreements of the parties to be in the best interests of the minors. The court adopts the agreements as set forth in the June 16, 2026 CCRC report. The court is not adopting the recommendations regarding the provision that the tie breaking authority shall be removed. The court is adopting provision #2 as set forth on page 17, with the following modification: "If the parties are unable to agree on a particular matter, then they shall address this matter first in co-parenting counseling and if the matter cannot be resolved by counseling services, the tie breaking provisions in the parties' Judgment shall apply. If the situation is of an exigent nature, then the prerequisite to address the issue in co-parenting counseling first shall not apply." The remainder of the recommendations are adopted as set forth.

The court grants Petitioner's request for reimbursement of the medical stipend in the amount of \$657, for the monthly payments of January, February, and March 2026. This payment is to be made on or before August 1, 2026. Respondent is reminded that these payments are due on or before the 15th of each month.

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The court grants Petitioner's request to modify the allocation of child related expenses from 50/50 to 70/30 with Respondent responsible for 70% and Petitioner responsible for 30%.

The court denies Petitioner's request to add an abstention order. Petitioner has failed to demonstrate the requisite facts to allow the court to make such an order. The current orders regarding consumption of alcohol as set forth in the parties' judgment remain in full force and effect.

All prior orders not in conflict with these orders remain in full force and effect. Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #15: THE COURT FINDS THE AGREEMENTS OF THE PARTIES TO BE IN THE BEST INTERESTS OF THE MINORS. THE COURT ADOPTS THE AGREEMENTS AS SET FORTH IN THE JUNE 16, 2026 CCTC REPORT. THE COURT IS NOT ADOPTING THE RECOMMENDATIONS REGARDING THE PROVISION THAT THE TIE BREAKING AUTHORITY SHALL BE REMOVED. THE COURT IS ADOPTING PROVISION #2 AS SET FORTH ON PAGE 17, WITH THE FOLLOWING MODIFICATION: "IF THE PARTIES ARE UNABLE TO AGREE ON A PARTICULAR MATTER, THEN THEY SHALL ADDRESS THIS MATTER FIRST IN CO-PARENTING COUNSELING AND IF THE MATTER CANNOT BE RESOLVED BY COUNSELING SERVICES, THE TIE BREAKING PROVISIONS IN THE PARTIES' JUDGMENT SHALL APPLY. IF THE SITUATION IS OF AN EXIGENT NATURE, THEN THE PREREQUISITE TO ADDRESS THE ISSUE IN CO-PARENTING COUNSELING FIRST SHALL NOT APPLY." THE REMAINDER OF THE RECOMMENDATIONS ARE ADOPTED AS SET FORTH.

THE COURT GRANTS PETITIONER'S REQUEST FOR REIMBURSEMENT OF THE MEDICAL STIPEND IN THE AMOUNT OF \$657, FOR THE MONTHLY PAYMENTS OF JANUARY, FEBRUARY, AND MARCH 2026. THIS PAYMENT IS TO BE MADE ON OR BEFORE AUGUST 1, 2026. RESPONDENT IS REMINDED THAT THESE PAYMENTS ARE DUE ON OR BEFORE THE 15TH OF EACH MONTH.

THE COURT GRANTS PETITIONER'S REQUEST TO MODIFY THE ALLOCATION OF CHILD RELATED EXPENSES FROM 50/50 TO 70/30 WITH RESPONDENT RESPONSIBLE FOR 70% AND PETITIONER RESPONSIBLE FOR 30%.

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THE COURT DENIES PETITIONER'S REQUEST TO ADD AN ABSTENTION ORDER. PETITIONER HAS FAILED TO DEMONSTRATE THE REQUISITE FACTS TO ALLOW THE COURT TO MAKE SUCH AN ORDER. THE CURRENT ORDERS REGARDING CONSUMPTION OF ALCOHOL AS SET FORTH IN THE PARTIES' JUDGMENT REMAIN IN FULL FORCE AND EFFECT.

ALL PRIOR ORDERS NOT IN CONFLICT WITH THESE ORDERS REMAIN IN FULL FORCE AND EFFECT. PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.